

Ritu Verma v. State of U.P. And 4 Others

High Court of Judicature at Allahabad · Division Bench · 21 March 2025 · 2025:AHC:41679-DB · WRIT - C No. - 5666 of 2025 · **Writ disposed; petitioner directed to Clause 6.5; disconnection stayed pending decision.**

HEADNOTE

A writ seeking to quash electricity demand notices and to have a billing objection decided is disposed of by directing the consumer to the Clause 6.5 authority of the Uttar Pradesh Electricity Supply Code, 2005. If an application is filed within two weeks, that authority must decide it in accordance with law within six weeks after hearing. The connection is not to be disconnected until that decision.

FACTUAL SUMMARY

Ritu Verma, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd. (service connection Account No. 705080905), challenged notices dated 30.08.2024 demanding Rs. 1,56,960 from DVVNL and Rs. 11,604 from Torrent Power Ltd. She sought certiorari to quash those notices, a mandamus restraining coercive action, and a direction that her objection dated 07.01.2025 against the combined demand of Rs. 1,68,564 be decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

A consumer disputing a demand notice is to approach the authority under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. If an application is filed within two weeks, the authority shall consider and decide it in accordance with law within six weeks of filing, after hearing the consumer. The connection shall not be disconnected until that decision. ¶ 3-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ seeking to quash electricity demand notices and to have a billing objection decided is disposed of by directing the consumer to the Clause 6.5 authority of the Uttar Pradesh Electricity Supply Code, 2005.. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE DEMAND NOTICES DATED 30.08.2024

The Court neither quashed nor upheld the DVVNL/Torrent Power demands; the objection was relegated to Clause 6.5. ¶ 3